

RETURN OF NON-SERVICE

**IN THE CIRCUIT COURT OF THE STATE OF OREGON
IN AND FOR THE COUNTY OF WASHINGTON**

Case Number: 25JU04261 Court Date: 10/14/2025 9:30 am

In the Matter of: **AL-MIRA AMIRA JAZMINE
DAVIS**

Service Documents:
Summons and Petition

A Child

For:
DOJ- Portland Office- CAPD (Child Advocacy Section)
100 SW MARKET ST
4TH FLOOR
PORTLAND, OR 97201

Received by Barrister Malstroms dba Barrister Legal Services, LLC on the 30th day of September, 2025 at 2:24 pm to be served on **ASHLE ANTOINETTE PENN, 17458 NW SPRINGVILLE RD, APT. 9, PORTLAND, OR 97229.**

I, Bill Powers, Process Server, do hereby affirm that on the **2nd day of October, 2025 at 11:42 am, I:**

discontinued attempts for personal service by serving a certified true copy of Summons and Petition, Personally and in person upon **ASHLE ANTOINETTE PENN**, at the address provided on the service request of: 17458 NW SPRINGVILLE RD, APT. 9, PORTLAND, OR 97229. I was unable to serve for the reasons detailed in the comments below.

Additional Information pertaining to this Service:

10/2/2025 11:42 am Attempted service at 17458 NW SPRINGVILLE RD APT. 9, PORTLAND, OR 97229. Spoke with John Doe, he told me there is no one named Ashley Penn living here. He was a 50 year old, male, Afriician American, 6 foot, 240 lbs., bald, no glasses.

I declare under penalty of perjury that I am a resident of the State of Oregon. I am a competent person 18 years of age or older and not a party to or attorney in this proceeding and am authorized to serve the process described herein. I certify that the person, firm, or corporation served is the identical one named in this action. I am not a party to nor an officer, director, or employee of, nor attorney for any party, corporate or otherwise.

I hereby declare that the above statement is true to the best of my knowledge and belief, and that it is made for use as evidence in court and is subject to penalty for perjury.



Bill Powers, Process Server
Process Server
10/8/2025

Date

**Barrister Malstroms dba Barrister Legal
Services, LLC
967 N. Cascade Dr
Woodburn, OR 97071
(503) 246-8934**

Our Job Serial Number: TSB-2025005172
Ref: 100136/XGP1202-25




Assistant Attorney General
of Attorneys for State of Oregon

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR WASHINGTON COUNTY
Juvenile Department

In the Matter of	Case No. 25JU04261
AL-MIRA AMIRA JAZMINE DAVIS,	SUMMONS
A Child.	

TO: Ashle Antoinette Penn
17458 NW Springville Rd., Apt 9
Portland, OR 97229

IN THE NAME OF THE STATE OF OREGON:

A petition has been filed asking the court to establish jurisdiction under ORS 419B.100 for the above-named child. A copy of the petition is attached.

You are directed to appear in person before this court at Washington County Courthouse, 222 N. 1st Avenue, Hillsboro, Oregon 97124 on the following dates and times for a hearing on the allegations of the petition and at any subsequent court ordered hearing:

Settlement Hearing: October 14, 2025, at 9:30AM.

Status Hearing: October 14, 2025, at 10:00AM.

Jurisdictional Trial: October 31, 2025, at 9:00AM.

You must appear in person in the courtroom on the date and at the time listed above. An attorney may not attend the hearing in your place. Therefore, you must appear even if your attorney also appears. If you are the child at issue in this proceeding and you have an attorney, you may rely upon your attorney to appear at the hearing on your behalf.

1 NOTICE

2 READ THESE PAPERS CAREFULLY

3 If you do not appear personally before the court as directed above, or do not appear at any
4 subsequent court-ordered hearing, **the court may proceed in your absence and without**
5 **further notice and take jurisdiction of the above-named child at the time of the above**
6 **hearing or on a future date.** The court may also make such orders and take such action as
7 authorized by law including, but not limited to, establishing wardship over the child and ordering
8 the removal of the child from the legal and physical custody of the parent, guardian, or other
9 person having legal or physical custody of the child. If the petition alleges that the child has been
10 physically or sexually abused, the court may enter an order restraining the alleged perpetrator of
11 the abuse from having contact with the child or attempting to contact the child and requiring the
12 alleged perpetrator to move from the household in which the child resides.

13 RIGHTS AND OBLIGATIONS

14 (1) **You have a right to be represented by an attorney in this matter.** If you are
15 currently represented by an attorney, **CONTACT YOUR ATTORNEY IMMEDIATELY**
16 **UPON RECEIVING THIS NOTICE.** Your previous attorney may not be representing you in
17 this matter.

18 **If you wish to hire an attorney,** please retain one as soon as possible to represent you in
19 this proceeding. If you need help in finding an attorney, you may call the Oregon State Bar's
20 Lawyer Referral Service at (503) 684-3763 or toll free in Oregon at (800) 452-7636. It is your
21 responsibility to maintain contact with your attorney and to keep your attorney advised of your
22 whereabouts.

23 **If you cannot afford to hire an attorney** and you are the child or the parent or legal
24 guardian of the child, and you meet the state's financial guidelines, you are entitled to have an
25 attorney appointed for you at state expense. **To request appointment of an attorney to**
26 **represent you at state expense, you must immediately contact the juvenile court, 222 N. 1st**

1 **Avenue Hillsboro, Oregon 97124**, (503) 846-8861, between the hours of 8AM and 5PM for
2 further information.

3 **If you are represented by an attorney, it is your responsibility to maintain contact**
4 **with your attorney and to keep your attorney advised of your whereabouts.**

5 (2) If this summons requires you to appear before the court to admit or deny the
6 allegations of the petition or requires you to file a written answer to the petition and you contest
7 the petition, the court will schedule a hearing on the allegations of the petition and order you to
8 appear personally and may schedule other hearings related to the petition and order you to appear
9 personally. If you are ordered to appear, you must appear personally in the courtroom, unless the
10 court has granted you an exception in advance under ORS 419B.918 to appear by other means
11 including, but not limited to, telephonic or other electronic means. If you are the child at issue in
12 this proceeding and you have an attorney, your attorney may appear in your place.

13 (3) At any hearing at which you are required to appear personally, you must inform
14 the court of your current resident address, mailing address, and telephone number.

15 (4) No later than 30 days from the date the petition is filed, each person about whom
16 allegations have been made in the petition must admit or deny the allegations. Unless directed
17 otherwise above, the admission or denial may be made orally at the hearing or filed with the
18 court in writing.

19 (5) If you are the parent or other person legally obligated to support the child, you
20 have the obligation to support the child. You may be required to pay for compensation and
21 reasonable expenses for the child's attorney. You may be required to pay support for the child
22 while the child is in state-financed or state supported custody. You may be required to provide
23 health insurance coverage for the child while the child is in state-financed or state supported
24 custody. You may be required to pay other costs that arise from the child being in the jurisdiction
25 of the Court. If you are ordered to pay for the child's support or there is an existing order of
26

1 support from a divorce or other proceeding, that support order may be assigned to the state to
2 apply to the costs of the child's care.

3 (6) If your rights are adversely affected by the court's judgment or decision regarding
4 jurisdiction or disposition, you have the right to appeal under ORS 419A.200. If you decide to
5 appeal a judgment or decision of the court, you must file a notice of appeal no later than 30 days
6 after the entry of the court's judgment or decision as provided in ORS 419A.200. You have a
7 right to be represented by an attorney in an appeal under ORS 419A.200. If you are the child or
8 the parent or legal guardian of the child and you cannot afford to hire an attorney and you meet
9 the state's financial guidelines, you are entitled to have an attorney appointed for you at state
10 expense. To request appointment of an attorney to represent you at state expense in an appeal
11 under ORS 419A.200, you must contact the juvenile court at 222 N. 1st Avenue Hillsboro,
12 Oregon 97124, (503) 846-8861, immediately.

13 PETITIONER'S ATTORNEY

14
15 Yazmin Wadia
16 Assistant Attorney General
17 Department of Justice
18 100 SW Market St.
19 Portland, OR 97201
20 Phone: (971) 673-1880

21
22 DATED this 16th day of September, 2025.



23
24
25
26

Yazmin Wadia #141244
Assistant Attorney General

CERTIFIED TO BE A TRUE
COPY OF THE ORIGINAL


Assistant Attorney General
of Attorneys for State of Oregon

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
JUVENILE DEPARTMENT

In the Matter of) No. 25JU04261
AL-MIRA AMIRA JAZMINE DAVIS) PETITION
A child)
TO THE ABOVE ENTITLED COURT:

PETITIONER, whose name appears below, respectfully represents to the Court as follows:

1.

The name, age, birth date and residence of the above-named child:

Al-mira Amira Jazmine Davis Age: 14 years DOB: 6/23/2011
1605 SE Maple St. D35
Hillsboro, OR 97123

2.

The child is within the jurisdiction of the Court by reason of the following facts:

ORS 419B.100(1)(c)

The child's condition or circumstances are such as to endanger the welfare of the child by reason of the following facts:

- A. The mother does not understand the specific needs of this child and lacks skills necessary to safely parent.
- B. The mother fails to recognize the safety threats presents by the father and is unwilling or unable to protect the child from father's unsafe behaviors.
- C. The mother is involved in criminal activities which interfere with her ability to safely parent the child.
- D. The father has engaged in a pattern of physical abuse towards the child, which places the child at risk of harm.
- E. The father is engaged in criminal activities and currently incarcerated, which interferes with his ability to safely parent the child.

3.

Petitioner has made a good faith effort to determine whether there is reason to know that the child is an Indian child pursuant to ORS 419B.636 and based on this inquiry, and at this time, there is no reason to know that the Indian Child Welfare Act applies to this case.

1 4.

2 The Agency placed the child in protective custody on September 6, 2025.
3
4

5 5.

6 The name and residence of the child's parents:
7

8 Ashle Antoinette Penn
9 17458 NW Springville Rd. Apt. 9
10 Portland, OR 97229

11 Al-quan Adam Davis
12 1605 SE Maple St. D35
13 Hillsboro, OR 97123
14

15 6.

16 The name and address of the person/agency having custody of the child:
17

18 Ashle Antoinette Penn
19 17458 NW Springville Rd. Apt. 9
20 Portland, OR 97229

21 Al-quan Adam Davis
22 1605 SE Maple St. D35
23 Hillsboro, OR 97123
24

25 7.

26 The child resides in this county of Washington.
27

8.

The child has lived in the following places with the following persons since birth:

Ashle Antoinette Penn
17458 NW Springville Rd. Apt. 9
Portland, OR 97229

Al-quan Adam Davis
1605 SE Maple St. D35
Hillsboro, OR 97123

9.

The names and present addresses of the persons with whom the child has lived since birth:

Ashle Antoinette Penn
17458 NW Springville Rd. Apt. 9
Portland, OR 97229

Al-quan Adam Davis
1605 SE Maple St. D35
Hillsboro, OR 97123

10.

Petitioner has not participated as a party, witness or in any other capacity in other litigation concerning the custody of the child in this or any other state.

11.

No other custody litigation involving the child is pending in any other court in this or any other state.

12.

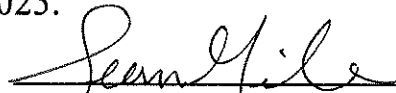
No person, not a party to these proceedings, has physical custody of the child or claims custody or visitation rights.

13.

The petition is not filed pursuant to the direction of the Court.

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2
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4
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6 WHEREAS, your Petitioner prays this Court to have an investigation made
7 of the circumstances concerning the above-named child, and to make such order
8 or orders as are appropriate in the circumstances.
9

10 SIGNED this 8th day of September, 2025.

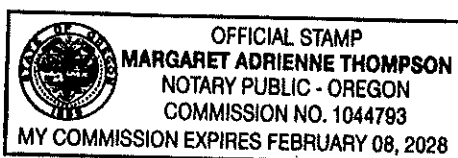
11 
12 Sean Giles, Petitioner
13

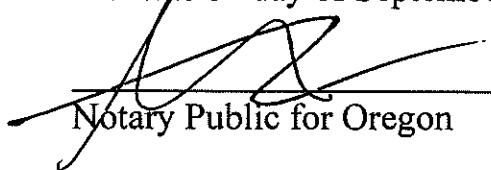
14 STATE OF OREGON)
15) ss
16 County of Washington)
17

18 I, Sean Giles, being first duly sworn, on oath, depose and say that I am the
19 Petitioner in the above-entitled proceedings, that I have read the foregoing
20 Petition, know the contents thereof and the same is true as I am informed and
21 believe.
22

23 
24 Sean Giles, Petitioner
25

26 SUBSCRIBED and SWORN to before me this 8th day of September, 2025.
27



28 
29 Notary Public for Oregon
30

1 **CERTIFICATE OF SERVICE**

2 I certify that on October 21, 2025, I caused to be served the foregoing proposed Proof of
3 Non-Service, by the methods noted below, a true and exact and full copy thereof to:

4
5 Ashle Penn
17458 NW Springville Rd., Apt 9
6 Portland, OR 97229

Mail Delivery

7
8 Yvana Mols
5289 NE Elam Young Pkwy, Ste. 110
9 Hillsboro, OR 97124
10 yvanam@hillsborolawgroup.com
cc: kymn@hillsborolawgroup.com
11 *Father's Attorney*

E-Mail

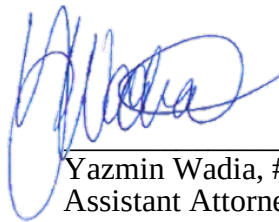
12 Ryan Lhotsky
180 East Main, Suite 210
13 Hillsboro, OR 97123
ryan@myfamilyfirm.com
14 *Child's Attorney*

E-Mail

15 Washington County CASA
230 NE 2nd Ave., Ste.1
16 Hillsboro, OR 97124
17 casa.office@multco.us

E-Mail

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Yazmin Wadia, #141244
Assistant Attorney General